

TENTATIVE RULINGS

DEPT. CM7

If the tentative rulings below are for a past date, please try the following to force a refresh of this page:

For a Windows-based computer, press "Cntrl" + "Shift" + "R" at the same time.

For an Apple computer, press "Cmd" + "Shift" + "R" at the same time.

TENTATIVE RULING

Date: 07/08/2026

Case #	Case Name	Tentative
01355718	Smith – Trust	TENTATIVE RULING Case: Smith – Trust 01355718 Calendar No.: 2 Date: 07/08/2026 MOTION TO COMPEL COMPLIANCE WITH SUBPOENA (ROA 407) Petitioner Brian Alexander Smith ("Petitioner"), in propria persona, moves to compel compliance with a subpoena issued to Cunningham Legal. No Opposition has been filed. However, of the approximately 100 proofs of service that Petitioner has filed in this case, none of them appear to be for service of the instant motion. This motion can be denied for lack of service. Petitioner states that the motion was served on Cunningham Legal twice and that the subpoena had a date of production of 2/17/26. Petitioner states that he emailed James Cunningham of Cunningham Legal on 2/26/26 to inquire as to response to the subpoena and Mr. Cunningham responded that he had served a response by mail on 1/26/26 to the address on the subpoena. Petitioner asked Mr. Cunningham to confirm the address and the type of response served. Mr. Cunningham did not respond. The subpoena is not attached to this motion, and the moving papers say nothing about what documents were requested by

		the subpoena. Even if this motion were properly served, the court is not inclined to compel compliance with a subpoena without knowledge of what documents it seeks. Based on the foregoing, the motion to compel compliance is denied. Petitioner is ordered to service notice of ruling.
		TENTATIVE RULING Case: Calendar No.: Date: 07/08/2026
01344389	Smith – Probate	TENTATIVE RULING Case: Smith – Probate 01344389 Calendar No.: 5 Date: 07/08/2026 MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (ROA 110)

		Objector Beverly Taylor ("Objector") moves to compel Administrator Betty McDonald-Taylor ("Administrator") to provide further responses to special interrogatories, set one. This case concerns the estate of decedent Johnny Ray Smith ("Decedent"). Administrator was appointed and Letters issued in 2023. (ROA 38.) On 1/31/25, Objector filed a Petition to compel Administrator to provide information concerning the estate. (ROA 56.) On 6/4/25, Administrator filed a First and Final Account and Petition for Final Distribution ("Petition for Final Distribution"). (ROA 70.) On 9/9/25, Objector filed an Objection to the Petition for Final Distribution. (ROA 89.) In her Objection, Objector states that, in July 2025, she informed Administrator of real property belonging to Decedent in North Carolina. On 9/22/25, Administrator filed a Supplement to the Petition which addresses the real property in North Carolina. (ROA 79.) Administrator states that there are three real properties in North Carolina, two of which are held jointly by Decedent and his pre-deceased wife, and one held by the pre-deceased wife jointly with a third party. (Id. at ¶ 6.) Administrator states that she is seeking letters in North Carolina. (Id. at ¶ 4.) She requests that the California estate be distributed without waiting for the North Carolina estate and states that she will "leave the bank account open for distribution of any funds from North Carolina." (Id. at ¶ 5.) On 3/13/26, Administrator filed an Amended First and Final Account and Petition for Final Distribution. ("Amended Petition for Final Distribution"). (ROA 92.) The Amended Petition for Final Distribution does not mention the real property in North Carolina. On 4/20/26, Objector propounded a first set of special interrogatories to Administrator, each of which requests information concerning the North Carolina properties. Specifically, the special interrogatories seek information concerning the existence and extent of Decedent's interest in the North Carolina properties and information about whether and how the Administrator intends to handle such properties. (ROA 110, Mot., Ex. B.) In response to the discovery, in meet and confer correspondence before and after the responses to the discovery, and in opposition to the instant motion, Administrator asserts that Objector does not have standing
--	--	--

		to conduct discovery because she has not filed an Objection to the Amended Petition for Final Distribution. The court finds such argument to be without merit. Discovery in probate matters is governed by the Civil Discovery Act (Probate Code § 1000(a); Code Civ. Proc. § 2016.010 <i>et seq.</i>) The Civil Discovery Act permits a defendant to commence discovery immediately upon service of the complaint or an appearance by defendant. (Code of Civ. Proc. §§ 2025.210, 2030.020, 2031.020.) Interrogatories may be propounded by “any party” in the action. (Code Civ. Pro. § 2030.010(a); <i>Budget Finance Plan v. Superior Court</i> (1973) 34 Cal.App.3d 794, 797.) And the right to discovery does not depend on the status of pleadings. (<i>Mattco Forge, Inc. v Arthur Young & Co.</i> (1990) 223 Cal.App.3d 1429, 1436.) There is no question that Objector is a party to the instant action, having filed an Objection and a separate Petition. Thus, Objector has standing to conduct discovery. Administrator further objects to the discovery on the grounds that Objector failed to comply with Probate Code section 8870. However, said section permits a personal representative or interested person to obtain a citation requiring a nonparty to answer interrogatories or appear to be cross-examined concerning estate property. Discovery between parties to the action is governed by the Discovery Act. Administrator also objects on the grounds that there is no authority for conducting discovery regarding out-of-state property that is not subject to this proceeding. Once again, Administrator’s arguments are contrary to the laws of discovery. Code of Civil Procedure section 2017.010 states in relevant part that “any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action.” It further provides that discovery may be obtained regarding the existence, description, nature, custody, condition, and location of land or other property. The court understands that that there must be an ancillary probate proceeding concerning the real property located in North Carolina. The court further understands that this court does not have jurisdiction to make any orders concerning the distribution of the North Carolina properties. Nonetheless, the disposition of the North Carolina properties remains relevant to a final distribution of Decedent’s estate in California.
--	--	--

Case law recognizes that any final decree of distribution in the domiciliary proceeding (i.e., the instant California probate proceeding) would be premature if the ancillary administration (i.e., the North Carolina probate proceeding) has not concluded. (*In re Estate of Patmore* (1956) 141 Cal.App.2d 416, 419.) California courts further recognize that the domiciliary administrator has a duty to the estate with respect to real property located in a foreign jurisdiction. (*Estate of Massaglia* (1974) 38 Cal.App.3d 767, 774.) Specifically, the administrator of the domiciliary estate must ensure that any surplus assets in the ancillary administration are remitted to the domiciliary estate for final distribution. (*Id.* at pp. 773-774.) Thus, the subject special interrogatories concerning the North Carolina properties are well within the scope of permissible discovery in this case.

Administrator opposes this motion on the additional ground that Objector's moving papers fail to include a memorandum of points and authorities in violation of California Rules of Court, Rule 3.1113(b). However, Objector's moving papers have a memorandum of points and authorities commencing on page three. (ROA 110, Mot., pp. 3-8.)

Finally, Administrator opposes this motion on the grounds that Objector failed to meet and confer. However, the moving papers reflect that Objector met and conferred with Administrator both before and after the discovery responses were served. (ROA 110, Bock Decl., ¶¶ 3-4, Exs. D and E.)

Based on the foregoing, the motion to compel further responses to special interrogatories, set one, is **GRANTED**.

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2030.300(d).) The court finds no substantial justification for Administrator's opposition to this motion.

The court imposes reasonable attorney's fees and costs in the total amount of **\$2,397.20** (7.7 hours at \$300p/h + \$87.20 costs) jointly and severally against Administrator and her counsel Michelle D. Strickland.

Counsel for Objector is ordered to serve a notice of ruling and may elect to submit a proposed Order After Hearing.

		[Motion Type]
		TENTATIVE RULING Case: Calendar No.: Date:
		TENTATIVE RULING Case: Calendar No.: Date: 07/08/2026
		TENTATIVE RULING Case: Calendar No.: Date: 07/08/2026
		TENTATIVE RULING Case: Calendar No.:

		Date:
		TENTATIVE RULING Case: Calendar No: Date:
		TENTATIVE RULING Case: Calendar No.: Date: